

25LBCV00233 25LBCV00233

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Case Number: 25LBCV00233 Hearing Date: September 1, 2026 Dept: S27

1. Background

Facts

Plaintiff, Vijaya Barathy Sivakumar

filed this action against Defendant, Providence Health System – Southern California for disability discrimination and related claims, alleging she has worked as a nurse for Defendant since 2016, but sustained a bilateral shoulder injury in 2021 while lifting a patient, and Defendant did not accommodate the injury and ultimately terminated her employment.

Plaintiff's operative complaint is
her First Amended Complaint, which she filed on 3/27/26. It includes causes of action for:

Unlawful Disability Discrimination

Unlawful Retaliation

Wrongful Termination in Violation
of Public Policy

2. Motion

to Compel Further Responses

The Court was originally scheduled
to hear this motion on 3/19/26. At the
conclusion of the hearing, the Court continued the motion to 4/21/26 to require
the parties to meet and confer. The
parties have filed numerous stipulations continuing the hearing on the motion

to permit them to resolve the issues. To date, the parties have filed nothing further substantively related to the motion. The Court presumes the parties have resolved all outstanding issues, and takes the motion to compel further responses off calendar as moot.

3. Motions

to Quash (4)

a. Subject

Subpoenas

Defendant propounded subpoenas on Plaintiff's medical providers, including Provide Family Medical Center – Redondo Beach, Providence Medical Institute Primary Care – San Pedro, Providence Urgent Care – Torrance, and Sports & Spine Orthopaedics. The subpoenas are "any and all" records style subpoenas, and seek medical records from the past ten years.

b. Parties'

Positions

Plaintiff moves to quash the subpoenas, contending Defendant admits Plaintiff is disabled, such that the subpoenas seek private medical information with no meaningful relevance to the lawsuit. There are four motions to quash on calendar, but the issues are substantially the same as they relate to each of the four motions, and the Court will address the motions collectively.

Defendant opposes the motions, contending Plaintiff has recently amended her complaint to claim significant emotional distress damages, which Defendant is entitled to discover. Defendant contends Plaintiff has placed both her physical condition (her disability) and also her mental health condition (emotional distress) at issue by way of this lawsuit. Defendant contends Plaintiff's emotional distress damages are not "garden variety," and therefore her medical records, which will shed light on her mental health, must be produced.

Plaintiff, in reply, contends nothing in the opposition contradicts the fact that Defendant concedes her disability and the medical conditions at issue in the complaint, and none of the listed physicians are mental health practitioners, such that it is unclear

what Defendant is seeking to recover other than a general fishing expedition.

c. Law

Governing Discovery of Medical Records

By filing a personal injury action,

plaintiffs place in issue their past and present physical and/or mental conditions related to the injury sued upon.

All medical and/or psychological records relating to the claimed injuries are thus discoverable. Evidence

Code §§ 996, 1016; Britt v. Superior Court (1978) 20 Cal.3d 844, 862–864. Normally, information about medical conditions entirely different from the injury sued upon is beyond the scope of discovery. However, medical records

pertaining to an unrelated condition are discoverable on a showing of “good cause” if the condition is relevant to the issue of proximate causation. Evidence Code §999; Slagle v. Superior Court (1989) 211 Cal.App.3d 1309, 1314–1315.

Notably, where a plaintiff makes no

claim of mental or emotional distress, a “garden variety” personal injury action seeking damages for “pain and suffering” does not place the plaintiff’s mental condition in issue. The plaintiff’s right to privacy in his or her post-injury psychotherapeutic records outweighs any need for discovery thereof. See Davis v. Sup.Ct. (1992) 7 Cal.App.4th 1008, 1016.

d. Analysis

The Court, after reviewing the

parties’ papers, is unclear on what Defendant is attempting to discover from

Plaintiff’s medical records. Plaintiff

establishes, in the moving papers, that Defendant has conceded all of

Plaintiff’s claimed physical injuries that support her disability claim. Defendant does not dispute this in opposition. The ordinary purpose of

discovering medical records is to disprove the allegation that the medical

injuries occurred and/or are as bad as the plaintiff contends, or to show that

they did occur but were due to some other cause. Most of the law in this regard has developed

in the context of personal injury claims, which are not at issue here. Plaintiff herein is alleging disability

discrimination, and if Defendant concedes the existence of the underlying

conditions at issue in the lawsuit, it is unclear how the medical records could

aid Defendant in its defense of the lawsuit.

Defendant's opposition centers on

Plaintiff's recent amendment to her complaint, pursuant to which she seeks to recover emotional distress damages.

Defendant's subpoenas, however, are not propounded on mental health providers. It seems Defendant is hoping

to discover that Plaintiff had additional medical conditions, other than those that form the basis of her disability claim, that it can argue caused or contributed to her emotional distress damages.

This is, however, far too attenuated to permit Defendant to overcome the Constitutional right to privacy in Plaintiff's own medical records. Defendant cites no authority permitting discovery of ten years' worth of primary, urgent, and orthopaedic medical records in order to determine a possible alternative source of claimed emotional distress. Defendant has the burden, once Plaintiff makes a privacy objection, to show heightened good cause for production of the subject records.

See *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th

1, 31. Defendant has not met that

burden, and the motions to quash are granted.

Plaintiff is ordered to give notice.